

Court No. - 3

Case :- WRIT - C No. - 12200 of 2023

Petitioner :- Amit Kushwaha

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jitendra Rpasad Kushwaha,Radheshyam

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Anish Kumar Gupta,J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State respondent no. 1 and Sri Chetan Chatterjee, learned counsel for the respondents no. 2, 3 and 4.

The writ petition has been filed praying for the following relief:-

*"(i) Issue, a writ order or direction in the nature of **Certiorari to quash** the assessment order dated 14-02-2023 passed by Resp. No.3 Annexed as Annexure No. (1).*

*(ii) Issue, a writ order or direction in the nature of **Mandamus to direct** the Resp. No. 3 & 4 to decide the representation filed on behalf of petitioner as on dated 20-02-2023.*

*(iii) Issue, a writ order or direction in the nature of **Mandamus to direct** the resp. No.3 & 4 to re-instate the Electricity connection of the petitioners premises with immediate effect."*

Learned counsel for the respondents no. 2, 3 and 4 submits that the order dated 14.02.2023 is a provisional assessment order and against that the petitioner has a remedy under the U.P. Electricity Supply Code, 2005 to submit his objections before the respondent no.3. He further states that if objection is submitted by the petitioner before the respondent no.3 within two weeks, the same shall be decided after affording reasonable opportunity of hearing to the petitioner.

In view of the stand taken by learned counsel for the respondents no. 2, 3 and 4 and without expressing any opinion on the merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objections afresh before the respondent no.3-Executive Engineer (Electricity) Electric Distribution Khand-III, PUVNL District- Ballia, along with certified copy of the instant order within two weeks from today. In the event, such an objection is submitted, the respondent no.3 shall decide the same in accordance with law, expeditiously preferably within next two weeks by a speaking and reasoned order after affording reasonable opportunity of hearing to the petitioner.

It is further directed that for a period of four weeks or till the objection is decided, whichever is earlier, no coercive action shall be taken against the petitioner.

Order Date :- 13.4.2023/Kirti